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GOVERNMENT NOTICE

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Statutory Instrument

No. 57 of 2026 — Citizenship by Investment (Amendment) Regulations.

*Citizenship by Investment (Amendment) Regulations***SAINT LUCIA**

STATUTORY INSTRUMENT, 2026, No. 57

[23rd March, 2026]

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*Citizenship by Investment (Amendment) Regulations***SAINT LUCIA**

STATUTORY INSTRUMENT, 2026, No. 57

[23rd March, 2026]

In exercise of the power conferred under section 40 of the Citizenship by Investment Act, Cap. 1.20, the Minister to whom the Citizenship by Investment Programme is assigned makes these Regulations:

Citation

1. These Regulations may be cited as the Citizenship by Investment (Amendment) Regulations, 2026.

Interpretation

2. In these Regulations, “principal Regulations” means the Citizenship by Investment Regulations, Cap. 1.20.

Amendment of regulation 2

3. Regulation 2 of the principal Regulations is amended by —

(a) deleting the definition for “approved enterprise project” and by replacing the following —

“ “approved enterprise project” means an enterprise project approved by Cabinet under regulation 11;”;

(b) deleting the definition for “approved irrevocable escrow” and by replacing the following —

“ “approved irrevocable escrow” means an approved irrevocable escrow declared under regulation 12A(3);”;

(c) deleting the definition for “developer” and by replacing the following —

“ “developer” —

(a) in relation to a real estate project, means a person who makes an application for approval of a real estate project under regulation 10;

(b) in relation to a built real estate project, means a person who makes an application for approval of a built real estate project under regulation 10A;

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- (c) in relation to an enterprise project, means —
 - (i) a person who makes an application for approval of an enterprise project under regulation 11(2); or
 - (ii) a person approved by the Board under regulation 11(7) to finance and implement an approved enterprise project”;
- (d) deleting the definition for the word “enterprise project” and by replacing the following —

““enterprise project” means an enterprise project under regulation 11(1);”;
- (e) inserting in the correct alphabetical sequence the following new definitions —

““apartment” means a self-contained residential unit forming part of a multi-unit building or development, together with all structures, installations, fixtures, servitudes, rights and appurtenances that belong to or are enjoyed with the self-contained residential unit;

“approved built real estate project” means an approved built real estate project under regulation 10A(3);

“built real estate project” means a built real estate project specified in Schedule 3;

“certificate of registration” means a certificate of registration issued to a citizen on approval of an application for citizenship by investment;

“Invest Saint Lucia” has the meaning assigned under section 2 of the Invest Saint Lucia Act, Cap. 15.24;

“Register” has the meaning assigned under the Condominium Act, Cap. 5.05;

“Registry” has the meaning assigned under section 2 of the Land Registration Act, Cap. 5.01;

“villa” means —

 - (a) a dwelling unit available for rent by a guest; or
 - (b) a cluster of dwelling units available for rent by a guest with supporting recreational facilities;”.

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Amendment of regulation 7

4. Regulation 7 of the principal Regulations is amended by —

- (a) inserting immediately after subregulation (2), the following new subregulation (3) —

“(3) For the purposes of section 36(1A) of the Act, an applicant shall provide a sworn affidavit to declare financial resources of at least US\$350,000.00.”;

- (b) inserting immediately after subregulation (8), the following new subregulation (9) —

“(9) For the purposes of section 36(7) of the Act, the Board may approve a maximum of one thousand and five hundred applications for citizenship by investment, annually.”;

- (c) deleting subregulation (10) and by replacing the following —

“(10) An application for citizenship by investment received during the financial years 2024 and 2025 and approved by the Board during the financial years 2024, 2025, 2026 and 2027 does not form part of the total number of approved applications for citizenship by investment for the financial years 2025, 2026 and 2027.”.

Amendment of regulation 9

5. Regulation 9 of the principal Regulations is amended by deleting subregulation 2 and by substituting the following —

- “(2) The Board shall retain twenty-five per cent of each monetary contribution to the Saint Lucia National Economic Fund for the marketing and promotion of the Citizenship by Investment Programme.”.

Amendment of regulation 10

6. Regulation 10 of the principal Regulations is amended by —

- (a) deleting subregulation (4)(b) and by replacing the following —

“(b) provides for any outstanding balance of the agreed purchase price to be placed in an approved irrevocable escrow;”;

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- (b) deleting subregulation (5)(a) and by replacing the following —

“(a) the investment in the real estate project to be at least the minimum investment requirement as set out in Option 1 of Schedule 2;”;

- (c) inserting immediately after subregulation (9), the following new subregulation (10) —

“(10) An application for approval of a real estate project under this regulation must not be made after the 1st day of December, 2025.”.

Insertion of new regulation 10A

7. The principal Regulations are amended by inserting immediately after regulation 10, the following new regulation 10A —

“Requirements for investment in a built real estate project

10A.—(1) A developer may make an application to the Minister, through the Unit, for approval of a built real estate project, to be a qualifying investment.

- (2) On receipt of an application by a developer under subregulation (1), the Unit —

- (a) may consult with Invest Saint Lucia;
- (b) shall review the application for approval of a built real estate project; and
- (c) shall make a recommendation to the Minister for consideration of the application.

- (3) The Minister shall, after receipt of a recommendation from the Unit under subregulation (2)(c) and on consultation with Cabinet, approve a built real estate project as a qualifying investment.

- (4) The Board shall publish an approved built real estate project in the *Gazette*.

- (5) Without prejudice to Part 3 of the Act —

- (a) an authorized agent may submit an application for citizenship by investment under an approved built real estate project to the Unit;

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- (b) on receipt of an application for citizenship by investment under paragraph (a), the Unit shall conduct due diligence checks; and
 - (c) after conducting due diligence checks under paragraph (b), the Unit shall refer the application for citizenship by investment and its report to the Board.
- (6) A report under subregulation (5)(c) must contain —
 - (a) the results of the due diligence check;
 - (b) the recommendation of the Unit for the grant or denial of an application for citizenship by investment.
- (7) In the case of an application for citizenship by investment under subregulation (5) —
 - (a) the qualifying investment is specified under paragraph 2A of Schedule 2;
 - (b) the non-refundable —
 - (i) processing fee is specified under paragraph 4 of Schedule 1,
 - (ii) administration fee is specified under paragraph 5 of Schedule 1;
 - (c) the application must be accompanied by —
 - (i) the agreement for investment in the approved built real estate project in the minimum value set out in paragraph 2A of Schedule 2,
 - (ii) proof of payment of the minimum value in the approved built real estate project,
 - (iii) proof of the value of the approved built real estate project.
- (8) Where the developer and an applicant executes an agreement for investment in an approved built real estate project and the applicant pays to the developer the minimum value, an application for citizenship by investment may be granted and a certificate of registration shall be issued to the applicant.

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(9) Beneficial ownership of the approved built real estate project through a company, is permissible if a company —

- (a) has issued the authorized shares to the applicant;
- (b) is incorporated or registered and maintained under the laws of Saint Lucia; and
- (c) submits, through the applicant, evidence as to its beneficial ownership, as certified by the Registrar of Companies and Intellectual Properties.

(10) An investment in an approved built real estate project that has been made as a qualifying investment under the Citizenship by Investment Programme shall not be sold or transferred for a period of at least five years after the granting of citizenship.

(11) After receiving a certificate of registration under subregulation (8), the citizen shall, within ninety days of receipt of the certificate of registration take the necessary steps to obtain title documents for his or her interest in the approved built real estate project, including —

- (a) taking steps to register his or her interest at the Registry;
- (b) in the case of the purchase of shares in a company, taking steps to complete and record the transfer or issue of shares in his or her name.

(12) A citizen shall provide to the Unit, within a time period specified by the Unit, proof of the interest acquired in the approved built real estate project, including —

- (a) a copy of the Land Register;
- (b) in the case of the purchase of shares in a company, proof of ownership of shares.

(13) Where the citizen is unable to provide the proof required within the time period specified by the Unit, the citizen may make an application to the Unit for an extension of time for a period not exceeding thirty days to provide the required proof.

(14) The Minister may revoke a certificate of registration and the citizen is required to surrender the certificate of registration to the Unit.”.

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Replacement of regulation 11

8. The principal Regulations are amended by deleting regulation 11 and by replacing the following —

“Requirements for investment in an approved enterprise project

11.—(1) The following enterprise projects may be approved as a qualifying investment —

(a) in the case of Option 1 and Option 2 of paragraph 3 of Schedule 2 —

- (i) a specialty restaurant,
- (ii) an agro-processing plant,
- (iii) a research institution or facility;

(b) in the case of Option 3 of paragraph 3 of Schedule 2, an enterprise project approved by Cabinet, including —

- (i) a housing project,
- (ii) a cruise port, bridge, road, highway and marina,
- (iii) a social development project,
- (iv) a national development programme, marketing or promotion programme or other programme,
- (v) any other enterprise project.

(2) A developer may make an application for approval of an enterprise project under subregulation (1) to the Unit.

(3) On receipt of an application for approval of an enterprise project under subregulation (2), the Unit shall submit a report with a recommendation to the Board for submission to the Minister.

(4) The Minister shall submit the application for approval of an enterprise project and the recommendation of the Board under subregulation (3) to Cabinet.

(5) On receipt of an application for approval of a proposed enterprise project under subregulation (4), Cabinet may grant or deny an application for approval of an enterprise project.

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(6) Notwithstanding subregulation (2), Cabinet may, on its own or on the recommendation of the Minister approve an enterprise project under subregulation (1)(b).

(7) Where Cabinet approves an enterprise project under subregulation (6), the Board may identify, select and approve a developer to finance and implement the approved enterprise project.

(8) Without prejudice to section 8(2)(d) of the Act, the Board may enter into an agreement with a developer which provides for —

- (a) the financing or funding of the approved enterprise project by the developer;
- (b) the implementation of the approved enterprise project by —
 - (i) the developer,
 - (ii) a contractor or other person appointed by the developer;
- (c) the operations of the approved enterprise project;
- (d) the submission of applications for citizenship by investment in relation to the approved enterprise project;
- (e) the payment of qualifying investments made by applicants into an approved escrow account;
- (f) the holding of such monies by an escrow agent;
- (g) the drawdown and application of such monies by the developer for the purposes of financing and implementing the approved enterprise project, in accordance with the terms of the escrow agreement.

(9) Nothing in an agreement made under subregulation (8) shall be construed as guaranteeing the approval of any application for citizenship by investment.

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(10) An application for citizenship by investment may be granted under an enterprise project under subregulation (1)(a), where an applicant who is the developer —

- (a) makes an investment in the approved enterprise project of the minimum amount set out in Option 1 of paragraph 3 of Schedule 2; and
- (b) creates no less than three permanent jobs through the investment in the enterprise project.

(11) An application for citizenship by investment may be granted under an enterprise project specified under subregulation (1)(a), where more than one applicant makes a joint investment in the approved enterprise project and —

- (a) each applicant makes an investment in the approved enterprise project of the minimum amount set out in Option 2(a) of paragraph 3 of Schedule 2;
- (b) the total minimum investment must be at least in the amount set out in Option 2(b) of paragraph 3 of Schedule 2;
- (c) the investment must create no less than six permanent jobs through the approved enterprise project.

(12) An application for citizenship by investment may be granted under an enterprise project under subregulation (1)(b), where the applicant makes an investment in the approved enterprise project of the minimum amount set out in Option 3 of paragraph 3 of Schedule 2.

(13) An approved enterprise project must be published by the Board in the *Gazette*.

(14) On publication of an approved enterprise project, an authorized agent may make an application for citizenship by investment.”.

*Citizenship by Investment (Amendment) Regulations***Insertion of new regulations 12A, 12B and 12C**

9. The principal Regulations are amended by inserting immediately after regulation 12, the following new regulations 12A, 12B and 12C —

“Requirements for the approved irrevocable escrow

12A.—(1) In the case of the approved real estate project under regulation 10, an approved built real estate project under regulation 10A or an approved enterprise project under regulation 11, a developer shall give notice to the Board of a potential escrow.

(2) A potential escrow must satisfy the requirements for being declared an approved irrevocable escrow as set out in the guidelines published by the Unit.

(3) The Board shall declare an escrow as an approved irrevocable escrow if satisfied that the escrow meets the requirements under subregulation (2).

(4) A developer may, after the Board declares an approved irrevocable escrow under subregulation (3), appoint an escrow agent by a notarial document.

Escrow account

12B.—(1) A developer shall enter into an escrow agreement with an escrow agent.

(2) Monies shall be held by the escrow agent in an escrow account.

(3) A developer who fails to comply with subregulation (1) shall have his or her application form returned.

(4) A developer under subregulation (4), may re-submit his or her application to the Board.

(5) In this regulation, “escrow account” means an account opened with an escrow agent in the escrow agent’s name, for the benefit of the parties to an agreement.

*Citizenship by Investment (Amendment) Regulations***Requirements for an escrow agreement**

12C.—(1) The parties to an escrow agreement shall appoint an escrow agent who is not a party to the agreement between the Board and an applicant and who has no direct or indirect interest in the agreement.

(2) For the purposes of subregulation (1), an escrow agent has a direct or indirect interest in the transactions of the parties to the agreement where —

- (a) he or she is a service provider in relation to the agreement;
- (b) he or she is a developer in relation to the agreement; or
- (c) he or she is the vendor in relation to the agreement.

(3) An escrow agreement must be in writing and contain the following particulars —

- (a) the names and addresses of the parties and the escrow agent;
- (b) the date of signing the escrow agreement;
- (c) the title of the agreement and the date it was signed;
- (d) the terms and conditions for delivery of the escrow funds;
- (e) any requirements for payments out of the escrow account;
- (f) the rights and obligations of the parties to the escrow agreement;
- (g) the remuneration and fees related to performance of the escrow agreement;
- (h) details of any drawdown process in cases where the property is under construction; and
- (i) any other particulars, as may be determined by the Board.

(4) The escrow agent shall sign the escrow agreement.”.

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Insertion of new regulation 15A

10. The principal Regulations are amended by inserting immediately after regulation 15 the following new regulation 15A —

“**15A.**—(1) A successful applicant shall provide his or her biometric data.

(2) In this section, “biometric data” includes fingerprints and other unique physical or behavioral characteristics that can be used for the identification and verification of a successful applicant.”.

Amendment of Schedule 1

11. Schedule 1 of the principal Regulations is amended —
(a) by deleting item 3, by replacing the following —

“3. Due diligence and background check fee	
Applicant (application for citizenship)	US\$8,000
Each qualifying dependant over 16 years of age (application for citizenship)	US\$5,000
Applicant (change of name)	US\$10,000
Each qualifying dependant over 16 years of age under (change of name)	US\$7,500
Applicant (review of a denied application for citizenship by investment)	US\$3,000”.

(b) by deleting item 6 and by replacing the following —

“Non-refundable administrative fees applicable for an approved real estate project under regulation 10	
Applicant applying alone	US\$30,000
Applicant applying with spouse alone	US\$45,000
Each additional qualifying dependant (under 18 years of age)	US\$5,000
Each additional qualifying dependant (18 years of age and older)	US\$10,000

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Applicant applying with spouse and more than four qualifying dependants	US\$10,000 for each additional qualifying dependant of any age
Non-refundable administrative fees applicable for an approved built real estate project under regulation 10A	
Applicant	US\$30,000”.

Amendment of Schedule 2

12. Schedule 2 of the principal Regulations are amended —

- (a) by inserting immediately after paragraph 2, a new paragraph 2A as follows —

2A. On approval of an application by means of an investment in an approved built real estate project, the minimum investment required:	
Applicant and qualifying dependants	US\$500,000

- (b) by deleting paragraph 3 and by replacing the following —

“3. Option 1 On approval of an application by means of a contribution to an approved enterprise project under regulation 11(1)(a), the minimum investment required:	
Applicant	US\$3,500,000 (plus no less than three permanent jobs)
Option 2 On approval of an application by means of a contribution to an approved enterprise project under regulation 11(1)(a), the minimum investment required:	
(a) More than one applicant in a joint investment	US\$6,000,000 (plus no less than six permanent jobs)

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(b) Each applicant to contribute a minimum of	US\$1,000,000
Option 3 On approval of an application by means of a contribution to an approved enterprise project under regulation 11(1)(b), the minimum investment required:	
Applicant and qualifying dependents	US\$250,000.00”.

Insertion of new Schedule 3

13. The principal Regulations are amended by inserting immediately after Schedule 2 the following new Schedule 3 —

“SCHEDULE 3

(Regulation 10A)

BUILT REAL ESTATE PROJECT

The following projects are built real estate projects —

1. an apartment
2. a villa.”.

Revocation of Schedule 4

14. Schedule 4 of the principal Regulations is revoked.

Amendment of principal Regulations

15. The principal Regulations are amended by deleting the words “marketing agent” wherever it appears and by replacing the words “business advisory partner”.

Made this 20th day of March, 2026.

ERNEST HILAIRE,
*Minister to whom Citizenship
by Investment Programme is assigned.*